

25SMCV06193 25SMCV06193

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Division: Civil Law and Motion

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Case Number: 25SMCV06193 Hearing Date: July 1, 2026 Dept: N

TENTATIVE RULING

Defendants Royal West, LLC; Joel K. Mogul, individually and as Trustee of the Joel K. Mogul Living Trust dated October 29, 2020; and Mitzi March Mogul, individually and as Trustee of the Joel K. Mogul Living Trust dated October 29, 2020's Motion to Consolidate Case No. 25SMCV06193 and 25SMUD01364 for All Purposes is GRANTED. Los Angeles Superior Court Case No. 25SMCV06193 (Jaradat v. Royal West, LLC) is hereby consolidated with Los Angeles Superior Court Case No. 25SMUD01364 (Royal West, LLC v. Jaradat), with Los Angeles Superior Court Case No. 25SMCV06193 (Jaradat v. Royal West, LLC) serving as the lead case. All future filings shall be made in Los Angeles Superior Court Case No. 25SMCV06193 (Jaradat v. Royal West, LLC).

Defendants Royal West, LLC; Joel K. Mogul, individually and as Trustee of the Joel K. Mogul Living Trust dated October 29, 2020; and Mitzi March Mogul, individually and as Trustee of the Joel K. Mogul Living Trust dated October 29, 2020 to give notice.

REASONING

The trial court has discretion to consolidate actions involving common questions of law or fact. (Code Civ. Proc., § 1048, subd. (a).) The purpose of consolidation is "to promote trial convenience and economy by avoiding duplication of procedure, particularly in the proof of issues common to both actions." (Estate of Baker (1982) 131 Cal.App.3d 471, 485.)

Defendants Royal West, LLC; Joel K. Mogul, individually and as Trustee of the Joel K. Mogul Living Trust dated October 29, 2020; and Mitzi March Mogul, individually and as Trustee of the Joel K. Mogul Living Trust dated October 29, 2020 ("Defendants") move to consolidate this case with Case No. 25SMUD01364 (Royal West, LLC v. Jaradat) on the grounds that the two cases involve the same parties, common questions of law and fact, and arise out of the same commercial lease, such that both disputes require interpreting clauses of the same lease agreement and turn on the rights and obligations of the parties during the tenancy. Plaintiffs Moen Jaradat and Fusion Looks LLC ("Plaintiffs") oppose the motion on the ground that the cases are no longer related because Defendant Royal West, LLC now seeks equitable remedies in the other action that are unrelated to this case that arises out of an incident of lockout that happened in the past.

The Court has reviewed the operative complaints filed in both actions and finds that these actions should be consolidated for all purposes. The First Amended Complaint in Case No. 25SMCV06193 (Jaradat v. Royal West, LLC) asserts claims for breach of contract, wrongful eviction, trespass, conversion, restitution, unfair business practices, negligence, forcible entry, forcible detainer, and nuisance against Defendants and Defendant Amanda Hughes, with the breach of contract alleged only against Defendants, based on a theory that Defendants breached the lease by failing to give notice before instituting an unlawful detainer action against them and unlawfully locking them out of the premises. The First Amended Complaint in Case No. 25SMUD01364 (Royal West, LLC v. Jaradat) involves only Royal West, LLC, a defendant in the present action, and

Moen Jaradat, a plaintiff in the present action, based on a theory that the premises had been abandoned, causing theories of lockout, such that Royal West, LLC brings claims for breach of contract, quiet title, ejectment, and declaratory relief based on a theory that Royal West, LLC is entitled to possession of the premises. While the present action involves four additional parties than Case No. 25SMUD01364, both parties concern competing positions as to possession under the lease agreement, such that the trier of fact could be expected to understand both cases without confusion, and litigating these actions separately is likely to involve a duplication of efforts.

Accordingly, Defendants Royal West, LLC; Joel K. Mogul, individually and as Trustee of the Joel K. Mogul Living Trust dated October 29, 2020; and Mitzi March Mogul, individually and as Trustee of the Joel K. Mogul Living Trust dated October 29, 2020's Motion to Consolidate Case No. 25SMCV06193 and 25SMUD01364 for All Purposes is GRANTED. Los Angeles Superior Court Case No. 25SMCV06193 (Jaradat v. Royal West, LLC) is hereby consolidated with Los Angeles Superior Court Case No. 25SMUD01364 (Royal West, LLC v. Jaradat), with Los Angeles Superior Court Case No. 25SMCV06193 (Jaradat v. Royal West, LLC) serving as the lead case. All future filings shall be made in Los Angeles Superior Court Case No. 25SMCV06193 (Jaradat v. Royal West, LLC).